

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC
HOLDINGS, LLC d/b/a COLONIAL
MOBILE MANOR,
Plaintiff,

Case No.: 2018-CC-_____

vs.

MICHAEL DARLING and
ANY UNKNOWN TENANT(s),
Defendants.
_____/

COMPLAINT SEEKING EVICTION, DAMAGES AND OTHER RELIEF

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MOBILE MANOR, sues the Defendant(s), MICHAEL DARLING and any UNKNOWN TENANT(s), in possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of a mobile home park lot tenant and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida.
3. Defendant, MICHAEL DARLING, is the last known registered owner of the double-wide mobile home located at 900 9th Avenue East, Lot 76, Palmetto, Manatee County, Florida 34221.
4. Defendant, MICHAEL DARLING, is a natural person at all times relevant believed

to reside in a mobile home located at 900 9th Avenue East, Lot 76, Palmetto, Manatee County, Florida, 34221.

5. Defendant(s), ANY UNKNOWN TENANT(s), may reside on real property at 900 9th Avenue East, Lot 76, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

6. Plaintiff owns, in fee simple, the real property located at 900 9th Avenue East, Lot 76, Manatee County, Palmetto, Florida, 34221, known as COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MOBILE MANOR.

7. Plaintiff, as landlord, leased to Defendant, MICHAEL DARLING, Lot 76 of the above-stated mobile home park at a monthly rental fee of \$1,049.00 for an ongoing period of one (1) year. The Defendant owes lot rent in the sum of \$1,049.00, plus late rent fees in the amount of \$50.00, pursuant to the Home Rental Agreement. A copy of the Home Rental Agreement is attached to this Complaint as Exhibit A.

8. Defendant, MICHAEL DARLING, is in default of the Home Rental Agreement with Plaintiff by failure to pay the total sum of \$1,049.00 as of May 1, 2018.

9. On April 6, 2018, Plaintiff served by posting on Defendant(s), MICHAEL DARLING and ANY UNKNOWN TENANT(s), a Three-Day Notice of Termination of Tenancy for Non-payment of Rent. A copy of this Notice is attached and marked as Plaintiff's Exhibit B accompanied by a copy of the certified mail receipt for the same.

10. On April 16, 2018, Plaintiff mailed a Three-Day Notice of Termination of Tenancy for Non-payment of Rent to MICHAEL DARLING to 900 9th Avenue East, Lot 76, Palmetto, Florida 34221. A copy of the certified receipt is attached and marked as Plaintiff's Exhibit C.

11. Defendants, MICHAEL DARLING and ANY UNKNOWN TENANT(s), have failed

to make the payment of past due rent, and late fees within three (3) days of delivery of the Notice and continue to refuse to pay the amounts due and owing to Plaintiff.

12. ANY UNKNOWN(s) TENANTS, may reside or have an interest in Lot 76 of COLONIAL MANOR MHC HOLDINGS, LLC d/b/a COLONIAL MOBILE MANOR, but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

13. Pursuant to the Rental Agreement and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

14. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney fees against Defendant(s), MICHAEL DARLING and ANY UNKNOWN TENANT(s), and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

15. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.

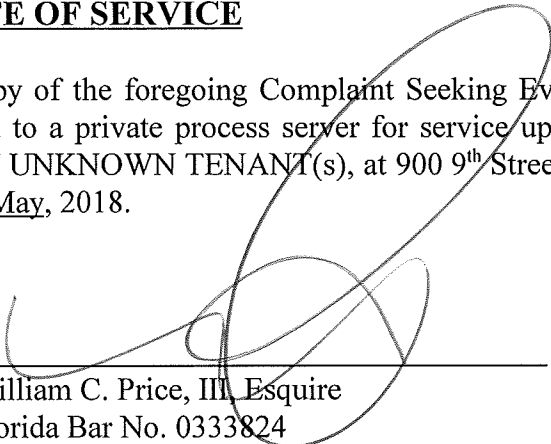
16. Plaintiff re-alleges the facts contained within paragraphs 1 through 14 as though fully set forth herein.

17. Defendant, MICHAEL DARLING, owes the Plaintiff a sum less than \$15,000.00 plus interest, costs and reasonable attorney fees.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, MICHAEL DARLING, for damages, costs, and a reasonable attorney fees.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendant(s), MICHAEL DARLING and ANY UNKNOWN TENANT(s), at 900 9th Street East, Lot 76, Palmetto, Florida 34221 on this 8th of May, 2018.



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